

FOR IMMEDIATE RELEASE

Tuesday, June 2, 2009

Slaughter Testifies Before the International Trade Commission on Behalf of Buffalo Goodyear Tire Workers

Washington, DC - *Congresswoman Louise M. Slaughter (D-NY-28), Chairwoman of the House Committee on Rules, today testified before the International Trade Commission (ITC) on behalf of workers at the Goodyear-Dunlop Tire plant in her district. Today the ITC met on a United Steelworker's petition to limit imports of certain passenger vehicles and light truck tires from China.*

The full text of Rep. Slaughter's testimony, as prepared, follows:

Madame Chairman, members of the Commission, my name is Louise McIntosh Slaughter. I represent the people of the 28th district of New York, which includes Rochester, Niagara Falls, and parts of Buffalo. Goodyear-Dunlop Tires North America has a major facility in my district. On behalf of the over 1,000 workers at that facility as well as their families and neighbors I welcome the opportunity to appear before you today to express my strong support for the United Steelworkers' Section 421 petition on certain passenger vehicle and light truck tires from

China.

When this petition was brought to my attention and I was able to examine the facts, I immediately thought that this is a "no brainer." If the surge in consumer tires and the adverse effect it has had on these American workers does not justify relief under the statute, then what will? I hope you will come to the same conclusion after what I know will be a thoughtful and thorough investigation.

In 2008, China exported nearly 46 million consumer tires with a value of more than \$1.7 billion. This was 215 percent more than the 2004 level of imports by volume and 295 percent more by dollar value.

In this period, domestic production of consumer tires declined by over 25 percent and the domestic industry's share of the U.S. tire market declined from 63 percent in 2004 to below 50 percent in 2008. Meanwhile, Chinese producers' share of the U.S. consumer tire market rose from less than five percent to more than 17 percent.

As an inevitable result, American plants closed and American workers were sent home with an uncertain fate. Over 4,400 workers lost their jobs during the four year stretch and an additional 2,400 face imminent job loss in 2009. These layoffs are coming during the worst economic crisis since the Great Depression, to the plight of these workers.

The bottom line is that it was no mere coincidence that these plant closings occurred over the exact same period as the flood of Chinese imports claimed an ever larger share of the U.S. market.

As I witnessed these disturbing trends, my heart is with the workers at the Goodyear-Dunlop plant in Buffalo. The plant opened in 1923. More than one thousand men and women work there producing a variety of tires including those that are the subject of this investigation. They are hardworking, skilled, productive employees who make high-quality products. Now they are looking at a very real possibility of job loss not because they cannot compete but because of an import surge from China causing market disruption - exactly the type of situation that Congress had in mind when Section 421 was adopted in 2000. Indeed, just last November, Goodyear announced that it was laying off 150 workers and scaling back production.

For these reasons, I support the USW's request for an annual import quota of 21 million consumer passenger tires for a three-year period. This would simply return imports from China to the 2005 level and thus give U.S. producers a chance to adjust. They can use this time to restore their operating income to reasonable levels and invest in needed plant and equipment upgrades and avoiding layoffs or shutdowns. This will not only help the workers in my district but also at tire manufacturing facilities throughout the country. They will all benefit from having a domestic source of high-quality, competitively-priced tires.

Madame Chairman, and members of the Commission, my district has seen more than its share of job losses as a result of unfair foreign competition and dumping. Once-great companies have downsized, moved to China and other countries, or simply closed their doors leaving people struggling to make ends meet. The ripple effect on small local businesses has resulted in even more job losses. We are told so often by economists, corporate executives, and political leaders from both parties how "free" trade is good for the country in a broad sense, even when particular regions or sectors are sacrificed.

Well, it is not good for the country as a whole if manufacturing continues on the current downward spiral- over four million jobs lost since 2001. Manufacturing provides high-wage, high-skilled jobs for millions of Americans. Manufacturing makes possible the creation of a strategic industrial base of products that are crucial to our national security. Manufacturing is a leading employer in thousands of communities across America. Restoring and sustaining a healthy manufacturing sector is essential for our long term national economic prosperity. A nation cannot be a superpower if it does not produce anything.

Trade remedies must be used in accordance with what those of us in the Congress spelled out for you without fear of retaliation when they are fairly applied. Trade remedies impact less than one percent of our trade in a typical year. However, these laws that provide redress against egregious foreign trade practices are a critical component for our economic recovery.

All nations rely on remedies to address distortions that are inevitable in a world where, every year, trillions of dollars worth of goods and services move between well over a hundred diverse countries at various stages of economic development. The World Trade Organization (WTO) was created not only to promote trade but also to ensure that rules that govern trade are available to all and mechanisms for settling disputes are as well. Essentially, trading nations have mutually agreed that there must be ways to ensure some level of fairness and to protect their citizens from potential economic catastrophe. Clearly, the 421 investigation before you is

entirely consistent with U.S. rights under the rules of the WTO - rules agreed to by the China in 2000 as a condition for their accession to the WTO.

As Chairman of the House Rules Committee, I have been a student of rules governing the legislative process in the House of Representatives. We could not conduct the people's business with 435 Members representing a wide array of regions and interests unless there were rules of the road. Members will disagree about the substance of legislation and occasionally balk about the process. Yet, the fact remains that the House's business is conducted in a fair and orderly fashion and the rules that govern the House are taken seriously. The same principles should be applied to our nation's trade remedy laws in general and Section 421 enforcement in particular.

Section 421 was put in place with these principles in mind when Congress voted to extend Permanent Normal Trade Relations to China almost ten years ago. I opposed China's accession. I worried that the trade deficit with China, already disturbingly high, would continue to ramp up to extraordinary levels.

Section 421 was created for precisely the kind of import surges and the impact on jobs we see now in the domestic consumer and light truck tire market. In the case before you, the proper application of this statute will help save this important sector of our economy. The cost of not acting is too great. Earlier in this decade I watched as another company in the Buffalo area, Buffalo Color, fell victim to predatory trade practices. Buffalo Color was forced to close its door not because of an inferior product, or because it would not compete on a level playing field. It closed its doors because our own government failed to enforce our own trade laws and provide relief from dumping that they deserved.

I want to be able to go back to my district and the people at that Goodyear-Dunlop plant in Buffalo and tell them that this time the rules of trade have been fairly applied for their benefit. I urge you to make an affirmative determination and recommend the remedy requested to President Obama who campaigned with the promise that our trade laws would be vigorously enforced. If you do your part, I have faith that he will do his.

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Most Reverend Timothy M. Dolan
Archbishop of New York
President

May 18, 2011

The Honorable Paul Ryan
United States House of Representatives
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Dear Mr. Ryan,

Thank you for your kind and enlightening letter of April 29, 2011.

I deeply appreciate your letter's assurances of your continued attention to the guidance of Catholic social justice in the current delicate budget considerations in Congress. As you allude to in your letter, the budget is not just about numbers. It reflects the very values of our nation. As many religious leaders have commented, budgets are moral statements.

As is so clear from your correspondence, the light of our faith – anchored in the Bible, the tradition of the Church, and the Natural Law – can help illumine and guide solid American constitutional wisdom. Thus I commend your letter's attention to the important values of fiscal responsibility; sensitivity to the foundational role of the family; the primacy of the dignity of the human person and the protection of all human life; a concrete solicitude for the poor and the vulnerable, especially those who are hungry and homeless, without work or in poverty; and putting into practice the principles of solidarity and subsidiarity, here at home and internationally within the context of a commitment to the common good shared by government and other mediating institutions alike.

I am grateful as well for your letter's attention to the priorities I expressed in my letter of January 14, 2011 to all the members of Congress, as well as to specific concerns raised recently by my two brother bishops, Stephen Blaire, Chairman of the USCCB Committee on Domestic Justice and Human Development, and Howard Hubbard, Chairman of the USCCB Committee on International Justice and Peace, in their letter of April 13, 2011 about the budget proposed by the House of Representatives which also expressed the very principles mentioned above.

It is clear that all of this correspondence reflects recognition of the foundational principles at work. Within the given parameters of such principles, people of good will might offer and emphasize various policy proposals that reflect their experience and expertise. The principles of Catholic social teaching contain truths that need to be applied. Thus, one must always exercise prudential judgment in applying these principles while never contradicting the intrinsic values that they protect.

A singularly significant part of our duty as pastors is to insist that the cries of the poor are heard, and that the much needed reform leading to financial discipline that is recognized by all never adds further burdens upon those who are poor and most vulnerable, nor distracts us from our country's historic consideration of the needs of the world's suffering people. The late Blessed Pope John Paul II was clear about this when he said: "When there is question of defending the rights of individuals, the defenseless and the poor have a claim to special consideration" (*Centesimus Annus*, 10, citing *Rerum Novarum*, 37). In any transition that seeks to bring new proposals to current problems in order to build a better future, care must be taken that those currently in need not be left to suffer. I appreciate your assurance that your budget would be attentive to such considerations and would protect those at risk in the processes and programs of such a transition. While appreciating these assurances, our duty as pastors will motivate our close attention to the manner in which they become a reality.

The principles of subsidiarity and solidarity are interrelated to one another. The late Pope reminded us that, "... *the principle of subsidiarity* must be respected: a community of a higher order should not interfere in the internal life of a community of a lower order, depriving the latter of its functions, but rather should support it in case of need and help to coordinate its activity with the activities of the rest of society, always with a view to the common good. (*Centesimus Annus*, 48)." Thus you rightly pointed out Pope John Paul's comments on the limits of what he termed the "Social Assistance State."

Your letter is correct in observing that the Church makes an essential contribution to society when she raises up moral principles to help guide and inform decisions about public policy in a compelling way. We bishops are very conscious that we are pastors, never politicians. As the Second Vatican Council reminds us, it is the lay faithful who have the specific charism of political leadership and decision (*Lumen Gentium*, 31; *Apostolicam Actuositatem* 13). The high call to public service which you have nobly answered entitles you and all our elected officials to our respect and constant prayer. Thanks to you and your colleagues for accepting that call.

This exchange of correspondence will be, I trust, but the beginning of an ongoing dialogue, in service, I pray, of the country we love and the religious convictions that have always inspired sound citizenship and generous public service. If that dialogue might be furthered by meeting with Bishops Blaire, Hubbard and me, we would be pleased to make ourselves available.

With prayerful best wishes and renewed gratitude, I am,

Faithfully,


+ Most Reverend Timothy M. Dolan
Archbishop of New York
President, United States Conference of Catholic Bishops

12. The apparatus of claim **11**, wherein the one or more location sensors comprise at least one hover sensor and determination of the direction uses information from the at least one hover sensor.

13. The apparatus of claim **11**, wherein the one or more processors are further configured to cause the apparatus to perform at least the following: performance, by starting a first number of milliseconds before the moment and ending a second number of milliseconds after the moment, of the determination of the direction and the recognition of the one or more attributes of the acoustic signal made by the at least one object.

14. The apparatus of claim **13**, wherein the one or more location sensors comprises at least one hover sensor and determination of the direction uses information from the at least one hover sensor.

15. The apparatus of claim **1**, wherein:

determination of the direction of the at least one object relative to the apparatus further comprises determination, using information from a touch sensor, one or more attributes of a touch by the at least one object on the apparatus;

the one or more processors are further configured to cause the apparatus to perform at least the following: comparison of the one or more attributes of the touch and the one or more attributes of the acoustic signal with attributes of touch and attributes of acoustic signals in a database in order to determine a match; and

causation of an operation to be performed further comprises causation of the operation to be performed based on the determined match.

16. The apparatus of claim **15**, wherein:

determination, using information from a touch sensor, of one or more attributes of a touch by the at least one object on the apparatus is performed responsive to a determination a touch event has been detected, and determination of the one or more attributes for a touch is performed using information from the touch sensor at a touch detection time; and

comparison of the one or more attributes of the touch and the one or more attributes of the acoustic signal further comprises comparison of the one or more attributes of the touch at the touch detection time and audio attributes determined by processing microphone signal information delayed from the touch detection time by a time difference with attributes of touch and attributes of acoustic signals in the database in order to determine the match.

17. The apparatus of claim **16**, wherein the one or more processors are further configured to cause the apparatus to perform at least the following:

calculation of the time difference based on a difference between a location on the apparatus of the touch and a microphone used to recognize the one or more attributes of the acoustic signal;

performance of the recognition of the one or more attributes of the acoustic signal using a microphone signal captured using time windows starting at a point based at least in part on the time difference and progression from this point; and

performance of the comparison of the one or more attributes of the touch at the touch detection time and the one or more attributed determined with each window with pairs of touch and audio attributes in the database.

18. The apparatus of claim **16**, wherein:

determination of the one or more attributes for a touch occurs using the information from the touch sensor at the touch detection time and for information from the touch sensor at a plurality of delays from the touch detection time to at least delays from the touch detection time to the touch detection time plus the time difference.

19. The apparatus of claim **15**, wherein:

determination, using information from a touch sensor, of one or more attributes of a touch by the at least one object on the apparatus is performed responsive to a determination an audio event has been detected;

the one or more processors are further configured to cause the apparatus to perform at least the following:

determination, in response to detecting the audio event, of an audio detection time;

comparison of the one or more attributes of the touch and the one or more attributes of the acoustic signal further comprises comparison of attributes of touch determined at a plurality of delays delayed from the audio detection time into past times and attributes of the acoustic signal with attributes of touch and attributes of acoustic signals in the database in order to determine the match.

20. The apparatus of claim **15**, wherein:

the one or more processors are further configured to cause the apparatus to perform at least the following:

determination, in response to a touch event being detected, of a touch detection time;

determination, in response to an audio event being detected, of an audio detection time,

wherein only one of a touch event or an audio event is detected and either a touch detection time or an audio detection time is determined; and

causation of the operation to be performed by the apparatus is based on the determined match and based on either the determined touch detection time or the determined audio detection time.

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